

ATTORNEY OR PARTY WITHOUT ATTORNEY: _____ STATE BAR NO.: _____ NAME: _____ FIRM NAME: _____ STREET ADDRESS: _____ CITY: _____ STATE: _____ ZIP CODE: _____ TELEPHONE NO.: _____ FAX NO.: _____ EMAIL ADDRESS: _____ ATTORNEY FOR (name): _____	FOR LEVYING OFFICER USE ONLY (Levying Officer Name and Address)
SUPERIOR COURT OF CALIFORNIA, COUNTY OF STREET ADDRESS: _____ MAILING ADDRESS: _____ CITY AND ZIP CODE: _____ BRANCH NAME: _____	
PLAINTIFF/PETITIONER: _____ DEFENDANT/RESPONDENT: _____	LEVYING OFFICER FILE NUMBER: _____
CLAIM OF EXEMPTION (Wage Garnishment)	FOR COURT USE ONLY
Instructions for completing this form: - Read <i>Employee Instructions</i> (form WG-003) before completing this form. - If you check the box for item 3b or 3c, you must attach a properly completed <i>Financial Statement</i> (form EJ-165) to this <i>Claim of Exemption</i>. You can get a copy of form EJ-165 for free by asking the levying officer or going to courts.ca.gov/rules-forms/find-your-court-forms or your court's self-help center. - If you check the box for item 3a, you do not need to complete form EJ-165. You also do not need to complete item 4. - You must give the levying officer this completed original form and one copy of the completed form. You should save at least one copy of the form for your records. Do not file this form with the court.	CASE NUMBER: _____

1. My name is:

2. Please send all papers to

☐ me

☐ my attorney

at ☐ the address shown above ☐ another address (specify):

3. I am making this claim of exemption because (check a, b, or c):

a. ☐ My earnings are below the legal minimum amount for an earnings withholding order.

(Your earnings cannot be withheld unless you earn more than a minimum amount set by law (Code Civ. Proc., § 706.050). You earn less than the legal minimum amount if, after mandatory deductions:

- If you are paid at least once a week: You earn less than 48 times the applicable minimum hourly wage each week. "The applicable minimum hourly wage" means either the California hourly minimum wage or the hourly minimum wage in the city or county where you work, whichever is higher.
- If you are paid once every two weeks: You earn less than 96 times the applicable minimum hourly wage each pay period.
- If you are paid twice a month: You earn less than 104 times the applicable minimum hourly wage each pay period.
- If you are paid once a month: You earn less than 208 times the applicable minimum hourly wage each pay period.)

b. ☐ I need all my earnings to support myself or my family. A completed *Financial Statement* (form EJ-165) is attached to this claim. (You do not need to complete form EJ-165 if you checked the box for item 3a.)

c. ☐ I need \$ _____ each pay period to support myself or my family. A completed *Financial Statement* (form EJ-165) is attached to this claim.



SHORT TITLE:	LEVYING OFFICER FILE NO.	COURT CASE NO.
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4. I am willing for the following amount to be withheld from my earnings **each pay period** during the withholding period. I understand that **this amount will be withheld each pay period** if the judgment creditor accepts this offer by not opposing my *Claim of Exemption* (check one; you do not need to complete item 4 if you checked the box for item 3a):

a. ☐ ☐ None

b. ☐ ☐ Withhold \$ _____ each pay period.

5. I am paid (check one)

☐ ☐ daily

☐ ☐ every two weeks

☐ ☐ monthly

☐ ☐ weekly

☐ ☐ twice a month

☐ ☐ other (specify): _____

i declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date:

(TYPE OR PRINT NAME)

_____
(SIGNATURE)